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Sequence Number: 01-08-26
Rule ID(s): 10509
File Date: 1/8/2026
Effective Date: 4/8/2026

Proposed Rule(s) Filing Form

Proposed rules are submitted pursuant to Tenn. Code Ann. §§ 4-5-202, 4-5-207, and 4-5-229 in lieu of a rulemaking hearing. It is the intent of the Agency to promulgate these rules without a rulemaking hearing unless a petition requesting such hearing is filed within ninety (90) days of the filing of the proposed rule with the Secretary of State. To be effective, the petition must be filed with the Agency and be signed by ten (10) persons who will be affected by the amendments, or submitted by a municipality which will be affected by the amendments, or an association of ten (10) or more members, or any standing committee of the General Assembly. The agency shall forward such petition to the Secretary of State.

Pursuant to Tenn. Code Ann. § 4-5-229, any new fee or fee increase promulgated by state agency rule shall take effect on July 1, following the expiration of the ninety (90) day period as provided in § 4-5-207. This section shall not apply to rules that implement new fees or fee increases that are promulgated as emergency rules pursuant to § 4-5-208(a) and to subsequent rules that make permanent such emergency rules, as amended during the rulemaking process. In addition, this section shall not apply to state agencies that did not, during the preceding two (2) fiscal years, collect fees in an amount sufficient to pay the cost of operating the board, commission or entity in accordance with § 4-29-121(b).

Agency/Board/Commission:	Board of Nursing
Division:	
Contact Person:	Mark S. Waters, Deputy General Counsel Grayson Carter, Assistant Commissioner for Legislative Affairs
Address:	665 Mainstream Drive, Nashville, TN 710 James Robertson Parkway, 5th Floor, Nashville TN
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Revision Type (check all that apply):

X Amendment

__ New

__ Repeal

Rule(s) (**ALL** chapters and rules contained in filing must be listed here. If needed, copy and paste additional tables to accommodate multiple chapters. Please make sure that **ALL** new rule and repealed rule numbers are listed in the chart below. Please enter only **ONE** Rule Number/Rule Title per row)

Chapter Number	**Chapter Title**
1000-01	General Rules and Regulations Governing Nursing
Rule Number	**Rule Title**
1000-01-.02	Fees

Place substance of rules and other info here. Please be sure to include a detailed explanation of the changes being made to the listed rule(s). Statutory authority must be given for each rule change. For information on formatting rules go to https://sos.tn.gov/products/division-publications/rulemaking-guidelines.

Chapter 1000-01
General Rules and Regulations Governing Nursing

Amendments

Rule 1000-01-.02 Fees is amended by deleting subparagraphs (1)(a), (1)(b), (1)(c), (1)(d), (1)(i), (1)(k), and (1)(l) in their entirety and substituting the following language, so that as amended, the new subparagraphs shall read:

(1) The Tennessee Board of Nursing hereby establishes fees as follows:

	Fee	Amount
(a)	Examination (Applicants may also be required to pay a fee directly to the National Council of State Boards of Nursing.)	$140.00
(b)	Re-Examination (Applicants may also be required to pay a fee directly to the National Council of State Boards of Nursing.)	$90.00
(c)	Endorsement	$140.00
(d)	Renewal	$130.00
(i)	Registered Nurse First Assistant Certificate Renewal	$140.00
(k)	Advanced Practice Registered Nurse Certificate/Certificate of Fitness	$140.00
(l)	Advanced Practice Registered Nurse Certificate Renewal	$140.00

Authority: T.C.A. §§ 63-7-106, 63-7-111, 63-7-114, 63-7-123, 63-7-126, 63-7-128, and 63-7-207.

* If a roll-call vote was necessary, the vote by the Agency on these rules was as follows:

Board Member	Aye	No	Abstain	Absent	Signature (if required)
James D. McCoy	X				
Samuel Alston	X				
Sheryl Wright	X				
Angela Beard	X				
Nancy L. Anness	X				
Sheila Bouie	X				
Charlotte Webb				X	
Amber N. Wyatt				X	
Dru Malcolm				X	
Martina Harris				X	
Vacant					

I certify that this is an accurate and complete copy of rulemaking hearing rules, lawfully promulgated and adopted by the Board of Nursing on 11/21/2024, and is in compliance with the provisions of T.C.A. § 4-5-222.

Board Member	Aye	No	Abstain	Absent	Signature (if required)
James D. McCoy	X				
Samuel Alston	X				
Sheryl Wright				X	
Angela Beard				X	
Nancy L. Anness	X				
Sheila Bouie	X				
Charlotte Webb	X				
Amber N. Wyatt	X				
Dru Malcolm	X				
Martina Harris				X	
Vacant					

On February 20, 2025, the Board of Nursing voted to reestablish the re-examination licensing fee at $90.00.

I certify that this is an accurate and complete copy of proposed rules, lawfully promulgated and adopted by the Board of Nursing on 11/21/2024 and again on 02/20/2025, and is in compliance with the provisions of T.C.A. § 4-5-222. The Secretary of State is hereby instructed that, in the absence of a petition for proposed rules being filed under the conditions set out herein and in the locations described, he is to treat the proposed rules as being placed on file in his office as rules at the expiration of ninety (90) days of the filing of the proposed rule with the Secretary of State.

Date: 12/3/2025

Signature: Mark S. Waters

Name of Officer: Mark S. Waters

Title of Officer: Deputy General Counsel, Department of Health

Agency/Board/Commission: Board of Nursing

Rule Chapter Number(s): 1000-01

All proposed rules provided for herein have been examined by the Attorney General and Reporter of the State of Tennessee and are approved as to legality pursuant to the provisions of the Administrative Procedures Act, Tennessee Code Annotated, Title 4, Chapter 5.

Jonathan Skrmetti
Attorney General and Reporter

January 6, 2026
Date

Department of State Use Only

Filed with the Department of State on: 1/8/2026

Effective on: 4/8/2026

Tre Hargett
Secretary of State

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Jan 08 2026, 11:09 am

Secretary of State
Division of Publications

Regulatory Flexibility Addendum

Pursuant to T.C.A. §§ 4-5-401 through 4-5-404, prior to initiating the rule making process, all agencies shall conduct a review of whether a proposed rule or rule affects small business.

(1) The extent to which the rule or rules may overlap, duplicate, or conflict with other federal, state, and local governmental rules.

This rule does not overlap, duplicate, or conflict with other federal, state, and local government rules.

(2) Clarity, conciseness, and lack of ambiguity in the rule or rules.

This rule is established with clarity, conciseness, and lack of ambiguity.

(3) The establishment of flexible compliance and/or reporting requirements for small businesses.

This rule does not involve reporting requirements.

(4) The establishment of friendly schedules or deadlines for compliance and/or reporting requirements for small businesses.

This rule does not involve reporting requirements.

(5) The consolidation or simplification of compliance or reporting requirements for small businesses.

This rule does not involve reporting requirements.

(6) The establishment of performance standards for small businesses as opposed to design or operational standards required in the proposed rule.

This rule does not establish performance standards for small businesses as opposed to design or operational standards required for the proposed rule.

(7) The unnecessary creation of entry barriers or other effects that stifle entrepreneurial activity, curb innovation, or increase costs.

This rule does not create unnecessary barriers or other effects that stifle entrepreneurial activity, curb innovation, or increase costs.

Impact on Local Governments

Pursuant to T.C.A. §§ 4-5-220 and 4-5-228, "On any rule and regulation proposed to be promulgated, the proposing agency shall state in a simple declarative sentence, without additional comments on the merits or the policy of the rule or regulation, whether the rule or regulation may have a projected financial impact on local governments. The statement shall describe the financial impact in terms of increase in expenditures or decrease in revenues."

The proposed rule amendments should not have a financial impact on local governments.

Additional Information Required by Joint Government Operations Committee

All agencies, upon filing a rule, must also submit the following pursuant to T.C.A. § 4-5-226(i)(1).

A brief summary of the rule and a description of all relevant changes in previous regulations effectuated by such rule;

The Tennessee Board of Nursing is increasing fees due to the fact that it has been running increasingly large annual deficits.

A citation to and brief description of any federal law or regulation or any state law or regulation mandating promulgation of such rule or establishing guidelines relevant thereto;

There is no federal or state law or regulation mandating promulgation of the rule.

Identification of persons, organizations, corporations or governmental entities most directly affected by this rule, and whether those persons, organizations, corporations or governmental entities urge adoption or rejection of this rule;

Nurses and applicants for nursing licenses would be the most directly affected. The Board has not received any comments on the rule.

Identification of any opinions of the attorney general and reporter or any judicial ruling that directly relates to the rule or the necessity to promulgate the rule;

There are no opinions of the attorney general or judicial rulings that directly related to the rule.

An estimate of the probable increase or decrease in state and local government revenues and expenditures, if any, resulting from the promulgation of this rule, and assumptions and reasoning upon which the estimate is based. An agency shall not state that the fiscal impact is minimal if the fiscal impact is more than two percent (2%) of the agency's annual budget or five hundred thousand dollars ($500,000), whichever is less;

The fee increase will not have an impact on state and local government revenues. The increase is intended to allow the Board of Nursing to collect fees sufficient to pay the cost of operating the Board.

Identification of the appropriate agency representative or representatives, possessing substantial knowledge and understanding of the rule;

Mark S. Waters, Deputy General Counsel, Department of Health
Grayson Carter, Legislative Liaison

Identification of the appropriate agency representative or representatives who will explain the rule at scheduled meeting of the committees;

Mark S. Waters, Deputy General Counsel, Department of Health
Grayson Carter, Assistant Commissioner for Legislative Affairs

Office address, telephone number, and email address of the agency representative or representatives who will explain the rule at a scheduled meeting of the committees; and

Department of Health, Office of General Counsel, 665 Mainstream Drive, 2nd Floor, Nashville, TN 37243, 615-741-1611, Mark.S.Waters@tn.gov.. 710 James Robertson Parkway, 5th Floor, Nashville, TN 37243, (615) 741-5233, Grayson.Carter@tn.gov

Any additional information relevant to the rule proposed for continuation that the committee requests;

None.

RULES
OF
THE TENNESSEE BOARD OF NURSING

CHAPTER 1000-01
GENERAL RULES AND REGULATIONS GOVERNING NURSING

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1000-01-.02 FEES.

(1) The Tennessee Board of Nursing hereby establishes fees as follows:

	Fee	Amount
(a)	Examination (Applicants may also be required to pay a fee directly to the National Council of State Boards of Nursing.)	$140.00 ~~0.00~~
(b)	Re-Examination (Applicants may also be required to pay a fee directly to the National Council of State Boards of Nursing.)	$90.00 ~~0.00~~
(c)	Endorsement	$140.00~~105.00~~
(d)	Renewal	$130.00 ~~90.00~~
(e)	Reinstatement	$100.00
(f)	Verification	$ 25.00
(g)	Biennial State Regulatory Fee (To be paid whenever an application for examination, re-examination, endorsement, renewal, or reinstatement is submitted.)	$ 10.00
(h)	Registered Nurse First Assistant Certificate	$ 0.00

(i)	Registered Nurse First Assistant Certificate Renewal	$140.00~~100.00~~
(j)	Registered Nurse First Assistant Certificate Reinstatement	$100.00
(k)	Advanced Practice Registered Nurse Certificate/Certificate of Fitness	$140.00~~0.00~~
(l)	Advanced Practice Registered Nurse Certificate Renewal	$140.00~~100.00~~
(m)	Advanced Practice Registered Nurse Certificate Reinstatement	$100.00
(n)	Change of Name	$ 0.00

(2) Fees paid to the Tennessee Board of Nursing are not refundable and may be paid in the following manner:

(a) All fees paid by money order or certified, personal, or corporate check must be submitted to the Board's administrative office and made payable to the Tennessee Board of Nursing.

(b) Fees may be paid by credit cards approved by the Division of Health Related Boards or other Division-approved electronic methods.

Authority: T.C.A. §§ 63-7-106, 63-7-111, 63-7-114, 63-7-123, 63-7-126, 63-7-128, and 63-7-207.